

Kifisias Avenue 1-3, 11523 Athens

T: 210 6475 600 • E: contact@dpa.gr • www.dpa.gr

Athens, 31-08-2023

Protocol No. 2217

Decision 29/2023

(Single-Member Body)

The President of the Authority, as a single-member body pursuant to Article 17 paragraph 1 of Law 4624/2019 (Government Gazette A' 137), within the framework of the powers provided for in Articles 4 paragraph 3 and 10 paragraph 4 of the Authority's Operating Regulation (Government Gazette B' 879/25.02.2022), convened via teleconference on March 6, 2023, in order to examine the case referred to below in the background of this decision. Present without voting rights were Anastasia Kaniklidou, legal auditor – lawyer, as well as Irini Papageorgopoulou, employee of the administrative affairs department, serving as secretary.

The Authority took into account the following:

1.

With the complaint No. G/ΕΙΣ/7515/27-05-2022 submitted to the Authority, A is directed against the Electronic Social Security Agency (hereinafter e-EFKA) and complains about the unlawful transmission of special category data related to her health, as well as the non-satisfaction of her right to access and information. Specifically, according to the complainant, with the document No. ... the Office of the Director (local office ...) of the e-EFKA branch X requested from the Municipality of X to send the decision of her election to the Municipal Welfare Enterprise of Municipality X (hereinafter KED X) for the service's information, citing as the justification for this request "a phone complaint from a citizen who claimed to be a journalist, who was asking about A's long-term sick leave from her service, while at the same time appearing on social media to be engaged in various activities as the vice president of KED X." In this way, according to her claims, a violation of the principles of purpose limitation and data minimization occurred. Furthermore, according to the complainant's claims, her rights to access and information were violated (a) regarding the aforementioned transmission and (b) concerning the existence of a complaint against her, while she was not informed about the identity of the complainant, although on ... she addressed the Data Protection Officer of the respondent, requesting to be informed of the details of the person who submitted the complaint against her.

2.

The Authority, following its document No. G/ΕΞ/1961/02-08-2022, in which it requested clarifications from the respondent regarding the complaints, received in response the document No. ... (and with the Authority's protocol number G/ΕΙΣ/10053/13-09-2022) from the Independent GDPR Office of the respondent. In the aforementioned response, after stating that the complainant was orally informed about the existence of the complaint against her, it is emphasized that the document sent to the Municipality of X contained a simple presentation and notification of the content of the complaint – inquiry from the Journalist, without this being adopted and confirmed by e-EFKA. Therefore, according to the aforementioned response, the said document does not serve as notification to the Municipality of X regarding the receipt of long-term sick leave by the complainant and her absence from work for this reason, but was sent in the context of checking the lawful exercise of duties by public employees serving therein and investigating any disciplinary offenses by both parties (from e-EFKA and the Municipality of X). Specifically, both elements needed investigation in combination, namely both the long-term absence due to sick leave (the fact of granting sick leave was known only to e-EFKA) while simultaneously engaging in...

3

activity in the KED X, as well as the investigation regarding any potential incompatibility reasons of the two roles (public employee - election to KED X). Finally, according to what is stated in the above response, regarding the submitted request of the complainant to be informed of the details of the

complainant, this was answered on ... following the cross-checking-verification of the data available in the competent services of e-EFKA, for which a specific period of time was required. According to the response given to the complainant, the said details were not available to e-EFKA, a thorough investigation was conducted, however, it was not possible to locate them, as on the one hand, the then competent Director who spoke with the complainant has retired, and on the other hand, emphasis was placed on the content of the complaint-question and the details were not maintained.

3. Subsequently, with the Authority's protocol numbers G/EX/329/08-02-2023 and G/EX/330/08-02-2023 summonses, the Authority called the involved parties to attend via teleconference before the President of the Authority as a single-member body on 16-02-2023 in order to discuss the aforementioned case. Due to a technical problem in conducting the teleconference on 16-02-2023, the discussion of the case was rescheduled for 06-03-2023, on which date the involved parties were again summoned to attend via teleconference before the President of the Authority as a single-member body, with the Authority's protocol numbers G/EX/432/20-02-2023 and G/EX/434/20-02-2023 summonses to the parties. Before the President appeared the authorized attorney of the complainant, Aikaterini Karapatzi, lawyer (AM/DSA ...), on behalf of the complainant appeared Charalampos Tsiliotis, lawyer (AM/DSA ...) and B, deputy director ... of EFKA. Also present was the Data Protection Officer of the complainant, G.

The complainant during the hearing supported the claims made in the complaint, emphasizing that the Mayor of X, from whom the decision of her election to KED X was requested, is not a hierarchically superior body of the complainant, while in any case, the complainant could have requested the decision of her election to KED X from her. Finally, she reiterated that she was never informed by the complainant about the existence of the complaint.

The complainant, during the hearing, reiterated the positions he had supported in the document with protocol number ... (and with the Authority's protocol number G/INS/10053/13-09-2022) from the Independent GDPR Office, specifically arguing that e-EFKA had a legitimate interest in knowing whether the complainant had been elected to KED X as vice president and to request the decision of her election, while he pointed out that the reference in the letter to the Mayor of X of the content of the complaint was necessary in order to justify his legitimate interest to the Mayor of X. He also noted the existence of more questions and phone calls regarding the complainant, as due to the size of X, her frequent absence from the service was widely known.

The Authority, after examining all the elements of the file and what emerged during the hearing process,

CONSIDERED IN ACCORDANCE WITH THE LAW

1. Whereas, in Article 5 of the General Data Protection Regulation (Regulation 2016/679), which establishes the principles governing the processing of personal data, it is provided in point b of paragraph 1 that "personal data shall be collected for specified, explicit and legitimate purposes and shall not be further processed in a manner that is incompatible with those purposes" ("purpose limitation"), while according to point c of the same paragraph "personal data shall be adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed" ("data minimization"). According to the above provisions, personal data must be relevant, appropriate, and not excessive in order to be lawfully processed.

5

as required at any given time in light of the purpose of the processing.

2.

Because, in this case, from the entirety of the evidence in the case file, it appears that the reported processing, consisting of the sending of the contested letter from ... with protocol number ... to the Municipality of X, in which the respondent requested the latter to send him the decision of the election of the complainant to the KED X and stated in its body that the complainant, based on a relevant complaint, was absent on long-term sick leave from her service, while she had undertaken activities as vice president of KED X, was carried out in violation of the provision of Article 5 paragraph 1 point (c)

of the GDPR, regarding the obligation to adhere to the principle of data minimization. Specifically, for the purpose of conducting an administrative investigation by the respondent, it was sufficient for him to ascertain whether the complainant – his employee – had been elected vice president of KED X while on sick leave and to request the relevant election decision from the Municipality of X, stating that this request is submitted in the context of conducting an administrative investigation, without the need to disclose the specific reason for which the investigation is being conducted and to present verbatim the content of the relevant citizen complaint. The further details mentioned in the contested letter, particularly the verbatim quotation of the content of the complaint, were not appropriate and necessary for the purpose served by this specific processing, given that for the investigation of any liability of the complainant - employee based on the provisions of Law 3528/2007, as amended and in force, it was sufficient to disclose only the above legal basis for granting the requested information of the complainant.

3.

Because, the respondent as the data controller is obliged to comply with the requirements for the protection of personal data, among which is the obligation to adhere to the principle of proportionality.

4.

Because, in relation to the established violation of the principle of minimization by the respondent, as the data controller, there is a case for the Authority to exercise its corrective powers under Article 58 paragraph 2 of the GDPR. Specifically, the Authority, taking into account the factual circumstances of the case as analyzed above in the background of this document, in accordance with Recital 148 of the GDPR, deems it necessary to issue a reprimand under Article 58 paragraph 2 point (b) of the GDPR to the respondent for the aforementioned processing in violation of Article 5 paragraph 1 point (c) of the GDPR, which is deemed proportionate to the severity of the established violation, and to order, under Article 58 paragraph 2 point (d) of the GDPR, that henceforth the respondent, as the data controller, processes personal data in a manner consistent with the requirements of the principle of data minimization (Article 5 paragraph 1 point (c) of the GDPR), as mentioned above.

5.

Because, according to Article 15 paragraphs 1 and 3 of the GDPR: “1. The data subject has the right to obtain from the data controller confirmation as to whether or not personal data concerning him or her is being processed and, if that is the case, the right of access to the personal data and to the following information: a) the purposes of the processing, b) the relevant categories of personal data, c) the recipients or categories of recipients to whom the personal data have been or will be disclosed, in particular recipients in third countries or international organizations, d) where possible, the period for which the personal data will be stored or, when that is not possible, the criteria used to determine that period, e) the existence of the right to request from the data controller rectification or erasure of personal data or restriction of processing of personal data concerning the data subject or the right to object to such processing, f) the right to lodge a complaint with a supervisory authority, g) when the personal data are not collected from the data subject, any available information as to their source, h) the existence of automated decision-making, including profiling,

7

as provided in Article 22 paragraphs 1 and 4 and, at least in these cases, significant information regarding the logic followed, as well as the significance and the anticipated consequences of the said processing for the data subject. [...] 3. The data controller provides a copy of the personal data being processed. [...] If the data subject submits the request by electronic means and unless the data subject requests otherwise, the information is provided in a commonly used electronic format.” At the same time, Article 12 paragraph 3 of the GDPR states: “The data controller provides the data subject with information regarding the action taken in response to a request under Articles 15 to 22 without undue delay and in any case within one month of receiving the request. This deadline may be extended by two additional months, if necessary, taking into account the complexity of the request and the number of requests. The data controller informs the data subject of the extension within one month of receiving the request, as well as the reasons for the delay. If the data subject submits the request by electronic means, the information is provided, where possible, by electronic means, unless the data

subject requests otherwise.”

According to the case law of the Authority¹, each respondent, as the data subject of the complaint submitted against them to a public service, has the right to access the text of the said complaint, as well as information related to the origin (source) of such data. The origin refers to the identifying details of the complainant contained in the text of the complaint, such as in particular the name and address of the complainant.

6.

Since, from the entirety of the evidence in the case file, it appears that the complainant requested with her message dated ... via email to the Data Protection Officer of e-EFKA “in exercising her rights to information and access” to be informed of the details of the complainant (a citizen claiming the status of a journalist). The respondent, despite having requested the aforementioned information from the Municipality of X based on this complaint, responded to the complainant on ... that the relevant details of the complainant are not available to e-EFKA, because on the one hand the then competent Director who spoke with the complainant had retired, and on the other hand, emphasis was placed on the content of the complaint – question and the details were not retained. Therefore, as emerges from the factual circumstances, the respondent e-EFKA did not respond as it should have to the complainant regarding her access request in accordance with Article 15 of the GDPR within the deadline provided in Article 12 paragraph 3 of the GDPR².

7.

Since, in relation to the established violation of Article 12 paragraph 3 of the GDPR by the respondent e-EFKA, as the data controller, the Authority, taking into account the factual circumstances of the case as analyzed above in the background of this decision, in accordance with Recital 148 of the GDPR, considers that there is a case for the Authority to exercise its corrective powers under Article 58 paragraph 2 of the GDPR, and, in particular, to issue a reprimand under Article 58 paragraph 2 point (b), which is deemed proportionate to the severity of the established violation.

FOR THESE REASONS
THE AUTHORITY

a) Issues a reprimand under Article 58 paragraph 2 point (b) of the GDPR to the respondent e-EFKA for the above violation of the provision of Article 5 paragraph 1 point (c) of the GDPR as well as for the violation of Article 12 paragraph 3 of the GDPR and,

b) Orders, under Article 58 paragraph 2 point (d) of the GDPR, that henceforth the respondent e-EFKA, as the data controller, processes personal data in the manner described above, complying with the principles of data minimization (Article 5 paragraph 1 point (c) of the General Data Protection Regulation).

THE PRESIDENT

THE SECRETARY

Konstantinos Menoudakos

Irini Papageorgopoulou